HHS 405(d)
Aligning Health Care
Industry Security Approaches

The 405(d) Post

Volume XIX

A Word from the Task Group

2022 in Review

By Erik Decker, 405(d) Task Group member

Dear Colleagues,

2022 was an exciting year for the 405(d) Task Group and Program. As we begin to chart the year ahead, I want to take this moment to highlight the many accomplishments we achieved in 2022. My personal highlight was the **first in-person Task Group Session since 2019** where we gathered in Washington, D.C. to solidify our goals and strategic plan for the next 5 years. This session reminded us of the importance of our work and the need the sector has for this body to continue delivering industry-tested cybersecurity best practices to all size healthcare organizations. Also, throughout 2022, this Task Group was hard at work completing, reviewing, and approving the **new Health Industry Cybersecurity Practices: Managing Threats and Protecting Patients (HICP) 2023 Edition** which provides healthcare organizations an overview of the top five threats facing the industry and updated ten mitigating practices. In addition, a new wave was established with the goal of reviewing and republishing the "Operational Continuity Cyber Incident (OCCI)" as another joint product between industry and the 405(d) Program. Also, throughout last year, the Task Group was hard at work finalizing an Enterprise Risk Management (ERM) publication dedicated to incorporating cyber into ERM operations.

I also want to give a shout out to the 405(d) Task Group Ambassadors who spoke at **35+ conferences, webinars, and special meetings** providing attendees an overview of the 405(d) Program and the resources we provide to the sector. In addition, the Ambassadors developed a survey to obtain a better understanding of Health Sector Coordinating Council (HSCC) awareness of the HICP publication, gauge use of the HICP publication, and baseline other cybersecurity frameworks/insights. Looking forward, the Ambassadors will be updating the survey questions based on feedback received and reissuing it to a larger audience.

All of this work is showcased in our engagement metrics and **it is clear—industry is paying attention.** A few key statistics have been highlighted on the right.

SOCIAL MEDIA

ACROSS LINKEDIN, TWITTER, FACEBOOK, AND INSTAGRAM:

43 Total Posts

1,181 Total followers

43,000+ impressions

TOP SOCIAL MEDIA IMPRESSIONS BY RESOURCE

June's Spotlight Webinar, CISA Fireside Chat

12,000+ impressions

SUBSCRIBER ACTIVITY

734 New Subscribers

461 New Organizations

WEBSITE

1,017,891 Total website hits

MOST DOWNLOADED RESOURCE

"How to Implement Data Security"

1,221 downloads

8,000+ downloads in 2022 across all three HICP publications

There are several take aways from the metrics, but I want to highlight two things that stand out. **The new 405(d) website, which was released in early 2022, received over 1 million hits in its very first year!** Additionally, in the first year we were able to gather download data, the HICP publication was downloaded **over 8,000 times.** I promise those 8,000 downloads weren't all me. These statistics, and the increase in our subscriber activity show us that the work is being valued and used across the sector. Thank you to our general audience for continuing to follow us, engage with us, and for adopting our resources.

To Task Group Members, I just want to reiterate the importance of staying engaged and sharing your voice on these issues, as we can see doing so impacts the mission directly.

Here are a few other exciting developments in 2022:

New Law: PL116-321

Security practices promulgated under the 405(d) Program, such as the HICP Publication, been defined as a "Recognized Security Practice" in the new law PL 116-321, also known as the 2021 HITECH Act Amendment. **This update to the Act is an enormous win for the healthcare industry, as it provides an incentive for all sizes of healthcare organizations to apply the practices mentioned in HICP as part of their overall security practices.** This new law instructs OCR to consider the adoption of NIST or 405(d) practices in their enforcement actions, as long as those "recognized security practices" have been in place for the last 12 months. OCR provides guidance and examples of how organizations can implement HICP and take advantage of this new law in a video presentation released on October 31.

405(d) Website Refresh

Throughout 2022, the 405(d) Program has been working on **a complete website refresh** to provide the healthcare sector with simple, one-click navigation access to hundreds of free resources. The updated website will provide greater search functionality by topic, key words, and organization size. The program's cornerstone publication, HICP, will have dedicated pages for all three of the HICP publications for easy access. The 405(d) Program is excited to share the new site that will be launched in **early 2023.**

A Look to 2023

2023 is poised to be another groundbreaking year, with HICP 2023 just released, 405(d) Knowledge on Demand now live, and the forthcoming ERM and OCCI. The Task Group is already looking beyond 2023 and thinking about how we can support the sector by developing resources on topics like Data Governance and Education just to name a few. We also plan to continue our outreach through our ambassadors to meet and speak with as many healthcare organizations as possible to spread the word that we are here to help.

I also want to encourage anyone who would like to become part of this conversation to join the 405(d) Task Group and contribute your voice to our mission. This is a group that produces actionable change to the healthcare sector, and we are always eager to add more voices as that is the backbone of our strength.

So again, congratulations to all 405(d) Task Group Members on a stellar year, and I encourage you to keep up the good work in 2023!

Regards,

Erik Decker

New 405(d) Products Released in 2022

How to Implement Patching

How to Implement Data Security

That Seems Risky

Myth Vs. Fact

Patient Safety Awareness Week Poster

405(d) Post

Have You Heard: Protecting Medical Devices

HICP in the Spotlight

Meet the New HICP 2023 Edition

The HHS 405(d) Program is proud to announce the release of the *Health Industry Cybersecurity Practices 2023 Edition* that continues the 405(d) mission and vision of providing the HPH sector with cost-effective, industry tested best practices to fight the top 5 threats facing the sector.

Not new to HICP? Here's why you should read the 2023 Edition:

Cybersecurity threats evolve each year and with them comes new mitigating practices. The HICP 2023 Edition has been updated by industry and government professionals to include the most relevant and cost-effective ways to mitigate the current cybersecurity threats the HPH sector is facing. This edition of HICP includes **new top five threats** and many **new mitigating practices** that you should be implementing in your organization to continue to keep patients safe. Cybersecurity requires us to be flexible and preemptive. This new edition addresses cybersecurity trends the HPH sector is seeing and it will help your goals to uphold patient safety in your organization.

What's new in the HICP 2023 Edition:

1. **The HICP Main Document has been updated to renew our call to action to secure patient safety and includes new cybersecurity strategies such as Zero Trust and Defense in Depth.** It also now includes a section on the importance of workplace training and awareness and provides guidance on why each role in a HPH organization is important to keeping patients safe from cyber threats.
2. **The threat E-mail Phishing is now expanded as Social Engineering.** While the definitions between both editions are similar, social engineering threats encompass more than just email phishing! Some new items addressed by this new threat: Smishing, Whaling, Business E-mail Compromise, and more!
3. **Cybersecurity Practice #9 on Network Connected Medical Devices has been fully updated.** This section has been thoroughly updated with new sub-practices to ensure the protection of the growing use of network connected medical devices in the HPH sector.
4. **Cybersecurity Practice #10 has been updated from Cybersecurity Policies to Cybersecurity Oversight and Governances.** Now, this section will not only include relevant policies your organization needs, but also provides guidance on governance and oversight structures each organization should have in place to assess and monitor their cybersecurity program .
5. **New Sub-practices that have been added include:**
   a. **Attack Simulations (Practice #7):** This section provides entities a guide on the importance of performing attack simulations and guidance on what to include in your own simulations.
   b. **Cybersecurity Insurance (Practice #10):** This section provides entities guidance on why cyber insurance is important and what your cybersecurity insurance policies should cover.
   c. **Cybersecurity Risk Assessment and Management (Practice #10):** This section provides entities on how to perform risk assessments and even provides free federal tools you can utilize to perform your own Risk Assessment.

Other Updates:

While those listed above are the major updates, please note each of the 10 practices listed has been reviewed and updated to ensure the most up-to-date cybersecurity mitigations are provided and can be put in place today by organizations of all sizes.

We encourage **everyone,** including those who are familiar with HICP, to read the new 2023 Edition to ensure your organization is incorporating industry-tested best practices that can fight the cyber threats of today.

For an overview of what's new in HICP 2023 Edition download the **new** HICP one pager!

Top 5 Threats:

1. **Social Engineering**
2. Ransomware
3. Loss or Theft of Equipment or Data
4. Insider Accidental or Malicious Data Loss
5. Attacks Against Network Connected Medical Devices

Ten Practices:

1. Email Protection Systems
2. Endpoint Protection Systems
3. Access Management
4. Data Protection and Loss Prevention
5. Asset management
6. Network Management
7. Vulnerability Management
8. Incident Response
9. Network Connected Medical Device Security
10. **Cybersecurity Oversight and Governance**

Recent Federal Resources

HHS

HHS Issues Final Rule to Protect Medicare, Strengthen Medicare Advantage, and Hold Insurers Accountable

HC3

Royal & BlackCat Ransomware: The Threat to the Health Sector

Automation & Hacking: Potential Impacts on Healthcare

OCR

Lab Pays $16,500 Settlement to HHS, Resolving Potential HIPAA Violation over Medical Records Request

HHS Issues New Strengthened Conscience and Religious Nondiscrimination Proposed Rule

CISA

CISA Releases Report for K-12 Schools to Help Address Evolving Cybersecurity Threats

About The 405(d) Post

This newsletter is for information purposes only and aims to broaden awareness and align healthcare security approaches. The "A Word from the Task Group" and the "405(d) Chronicles" is written by a different 405(d) Task Group Member each issue and does not reflect the views of HHS as a whole. All Task Group Members have been invited to contribute to this newsletter. The news articles are not an endorsement of any product/viewpoint/entity. Use of this document is neither required by nor guarantees compliance with federal, state, or local laws. Please note that the information presented may not be applicable or appropriate for all health care providers and organizations.

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